

		more than three years prior to filing his Complaint in this action. [Opp. at 9.] Nothing has materially changed since the court denied the prior motion to dismiss for forum non conveniens. Defendant Yannoni relies on substantially the same facts and arguments previously weighed by the court. Indeed, the main change is that now this action has been litigated in this court for over three years. Based on all of the above, Defendant Yannoni's motion to dismiss is denied. Yannoni is to give notice.
4	First Foundation Inc. vs. Keller 2025-01493220	Motions to Compel Court will hear from counsel
5	Le vs. Dovich 2023-01342508	Motion to Compel Deposition (Oral or Written) On plaintiff Vy Le's motion to compel compelling defendant Joseph Dovich to appear for deposition, the court will hear from the parties about the pending trial date and its impact on Plaintiff's motion. Code Civ. Proc. §2024.020(a). The court also notes there is no proof of service for the opposition filed by Defendant.
6	Madar vs. Nikkiso America, Inc. 2025-01519836	Motion to Be Relieved as Counsel of Record The motion by Stalwart Law Group, APC, to be relieved as counsel of record for Michelle Madar, is granted. The Court finds withdrawal of counsel is appropriate, here, because of the breakdown in the attorney-client relationship that would make it unreasonably difficult for counsel of record to continue its representation. The Rules of Professional Conduct, rule 2.1, states: "In representing a client, a lawyer shall exercise independent professional judgment and render candid advice." The client's profound unhappiness with her counsel of record exercising its independent professional judgment, as required by Rule 2.1, confirms that relief is appropriate. Upon the signing of the order, counsel shall serve the signed order on the client and all parties that have appeared. Stalwart Law Group,

		APC will be relieved as counsel of record for Michelle Madar, effective upon the filing of the proof of service of the signed order upon the client and all parties. The Court declines Madar’s request to impose the conditions specified in section XI of her (oversized) opposing memorandum. (See ROA 70 [Opp’n at pp. 31-35].) The Court notes that Madar’s request for the Court to issue an order directing counsel to turn over her client file is not necessary. An attorney has a duty to promptly release a client’s file upon termination of employment, at the client’s request. (Cal. R. Prof. Conduct Rule 1.16.) Failure to do so may be cause for discipline from the State Bar. (Cal. Prac. Guide Prof. Resp. & Liability at ¶ 10:333.) The Court also notes that any extensions for the 07/31/26 motion to compel deadline should be sought from defense counsel. (Code Civ. Proc., § 2016.030 [“<i>the parties</i> may by written stipulation modify the procedures provided by this title for any method of discovery,” unless otherwise prohibited by the court] [emphasis added].) Stalwart Law Group, APC is ordered to give notice of the ruling.
7	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	The motion by Defendant Ulwelling Law, APC (“Ulwelling Law”) for an order striking the Complaint filed by Plaintiff Bonita M. McPherson, on behalf of Western Tap Manufacturing Company, Inc. (“Plaintiff”) and the three causes of action therein is DENIED. Ulwelling Law’s demurrer to the three causes of action alleged in Plaintiff’s Complaint is overruled in part and sustained in part with 15 days leave to amend. As an initial matter, the Court notes Plaintiff’s oppositions are untimely. (Code Civ. Proc., § 1005, subd. (b).) Ulwelling Law objected to the untimeliness of Plaintiff’s oppositions. Ulwelling Law served and filed timely and substantive replies. The Court exercises its discretion to consider the untimely oppositions. The Court also notes the Plaintiff’s proofs of service for Plaintiff’s oppositions did not include the server’s email address. (Code Civ. Proc. § 1013b, subd. (b)(1).) Ulwelling Law did not object to the method of service. The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents.